

26STCV00132 26STCV00132

County: los-angeles

Division: Civil Law and Motion

Department: 408

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Case Number: 26STCV00132 Hearing Date: June 30, 2026 Dept: 408

1. Plaintiff Abdul

Robertson's Motion to Proceed Using a Fictitious Name is GRANTED.

2. Plaintiff Abdul

Robertson's Motion to Seal Previously Filed Court Records is GRANTED.

I.

BACKGROUND

On January 5, 2026, Plaintiff Abdul Robertson ("Plaintiff") filed a complaint against Defendant YMCA of Metropolitan Los Angeles - Weingart YMCA Wellness & Aquatic Center ("Defendant") alleging causes of action for:

1.

Negligence; and

2.

Negligent Hiring and Supervision.

On February 5, 2026, Defendant filed an answer to Plaintiff's complaint.

On May 8, 2026, Plaintiff filed this Motion to Proceed Using a Fictitious Name and Motion to Seal. No opposition or other responsive pleading has been filed.

II.

MOTION TO PROCEED USING FICTITIOUS
NAME

A. Legal Standard

“‘[A] party may preserve his or her anonymity in judicial proceedings in special circumstances when the party’s need for anonymity outweighs prejudice to the opposing party and the public’s interest in knowing the party’s identity.’” (Doe v. Lincoln Unified School Dist. (2010) 188 Cal.App.4th 758, 767, quoting Does I thru XXIII v. Advanced Textile Corp. (9th Cir. 2000) 214 F.3d 1058, 1068.) A court may permit plaintiffs to use pseudonyms in three situations: “(1) when identification creates a risk of retaliatory physical or mental harm [Citation]; (2) when anonymity is necessary ‘to preserve privacy in a matter of sensitive and highly personal nature’ [Citation]; and (3) when the anonymous party is ‘compelled to admit [his or her] intention to engage in illegal conduct, thereby risking criminal prosecution.’” (Does I thru XXIII, supra, 214 F.3d at 1068.) Where the request for anonymity is based on the purported need “to preserve privacy in a matter of sensitive and highly personal nature,” the proper test is whether “the party’s need for anonymity outweighs prejudice to the opposing party and the public’s interest in knowing the party’s identity.” (Id.; Doe v. Lincoln Unified School Dist., supra, 188 Cal.App.4th at 767.)”

“‘[F]ictitious names are allowed when necessary to protect the privacy of children, rape victims, and other particularly vulnerable parties or witnesses.” (Doe v. Blue Cross & Blue Shield United of Wisconsin (7th Cir. 1997) 112 F.3d 869, 872.)

“A protected person who is a party in a civil proceeding may proceed using a pseudonym, either John Doe, Jane Doe, or Doe, for the true name of the protected person and may exclude or redact from all pleadings and documents filed in the action other identifying characteristics of the protected person. A protected person who proceeds using a pseudonym as provided in this section shall file with the court and serve upon all other parties to the proceeding a confidential information form for this purpose that includes the protected person’s name and other identifying characteristics being excluded or redacted. The court shall keep the

confidential information from confidential.” (Code Civ. Proc., § 367.3, subd. (b)(1).)

B. Discussion

Plaintiff moves to proceed in this action under the fictitious name “John Doe” for all future filings, pleadings, and public docket references as the instant action arises from the sexual abuse of Plaintiff by a YMCA basketball coach employed by Defendant during Plaintiff’s minority between 1999 and April 2000. (Motion, at p. 1.)

The court finds that Plaintiff need for anonymity outweighs any prejudice to Defendant and the public’s interest in knowing Plaintiff’s identity due to the highly sensitive and personal matter at issue in this action. The court further notes that Defendant did not file an opposition. (Cal. Rules of Court, rule 8.54, subd. (c) [“A failure to oppose a motion may be deemed a consent to the granting of the motion.”]; *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Accordingly, the motion is granted.

III.

MOTION TO SEAL

A. Legal Standard

Unless confidentiality is required by law, court records are presumed to be open to the public. (Cal. Rules of Court, rule 2.550, subd. (c).) Consequently, pleadings, motions, evidence, and other papers may not be filed under seal merely by stipulation of the parties; rather, a prior court order is necessary. (Cal. Rules of Court, rule 2.551, subd. (a).) To grant such an order, the court must expressly find that “an overriding interest exists that overcomes the right of public access to the record, an overriding interest supports sealing the records, a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed, the proposed sealing is narrowly tailored, and no less restrictive means exist to achieve the overriding interest.” (Cal. Rules of Court, rule 2.550, subd. (d).)

B. Discussion

Plaintiff moves for an order sealing all previously filed court records identifying Plaintiff by his legal name. (Motion, at p. 1.) Plaintiff argues that sealing such records is necessary to effectuate the protections afforded by the concurrently filed motion to proceed under a fictitious name. (Ibid.) Plaintiff also argues that his right to privacy in his identity as a victim of childhood sexual abuse constitutes an overriding interest that overcomes the right of public access to the court records and that there is a substantial probability that Plaintiff's privacy will be prejudiced without sealing. (Id., at pp. 3-5.)

The court finds there is an overriding interest in the protection of Plaintiff's identity for the same reasons stated above. The court also finds that there is a substantial probability that interest will be prejudiced if the record is not sealed and that there is no less restrictive means to protect the overriding interest. The court further notes that Defendant does not oppose the motion. (Cal. R. Ct., 8.54(c) ["A failure to oppose a motion may be deemed a consent to the granting of the motion."]; *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Accordingly, the motion is granted.

IV.

CONCLUSION

1. Plaintiff Abdul

Robertson's Motion to Proceed Using a Fictitious Name is GRANTED.

2. Plaintiff Abdul

Robertson's Motion to Seal Previously Filed Court Records is GRANTED.